JUSTICE KAVANAUGH delivered the opinion of the Court.

In *Batson* v. *Kentucky*, 476 U. S. 79 (1986), this Court held that the Equal Protection Clause bars prosecutors from exercising peremptory challenges based on race. In *Batson* and subsequent cases, the Court has spelled out how a trial court should determine whether a prosecutor employed a peremptory challenge based on race. After the defendant makes a prima facie showing that a peremptory strike was based on race (step one), the prosecutor must provide a race-neutral reason for the challenged strike (step two). Then, at step three, defense counsel has an opportunity to rebut the prosecutor's race-neutral reason as pretextual, and the trial court in turn decides whether the prosecutor's race-neutral reason for striking a juror is pretextual "in light of all evidence with a bearing on it." *Miller-El* v. *Dretke*, 545 U. S. 231, 252 (2005); see *Flowers* v. *Mississippi*, 588 U. S. 284, 301–303 (2019); *Snyder* v. *Louisiana*, 552 U. S. 472, 478–479 (2008).

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Carrington; for the NAACP Legal Defense & Educational Fund, Inc., by *Ashley Burrell*, *Janai Nelson*, *Samuel Spital*, *Daniel Harawa*, *Catherine Logue*, and *Christopher Kemmitt*; and for Linda Lee et al. by *Amy R. Upshaw*.

A brief of *amici curiae* urging affirmance was filed for the State of Alabama et al. by *Steve Marshall*, Attorney General of Alabama, *A. Barrett Bowdre*, Solicitor General, *Robert M. Overing*, Principal Deputy Solicitor General, *George L. Muirhead*, Assistant Solicitor General, and *Jordan Mauldin* and *Matthew J. Clark*, Assistant Attorneys General, and by the Attorneys General for their respective States as follows: *Stephen J. Cox* of Alaska, *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Raúl R. Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Liz Murrill* of Louisiana, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *David W. Sunday, Jr.*, of Pennsylvania, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, and *John B. McCuskey* of West Virginia.

Geoffrey C. Shaw and *Elizabeth R. Moulton* filed a brief for Habeas Corpus Scholars as *amici curiae*.

In this capital case, the Mississippi trial court never conducted the essential third step of the *Batson* inquiry. The Mississippi Supreme Court affirmed Pitchford's conviction and death sentence—but only by concluding that Pitchford had waived his opportunity to rebut the prosecutor's race-neutral reasons as pretextual at *Batson*'s third step. On habeas review, the U. S. District Court determined that Pitchford had not waived rebuttal and that the Mississippi Supreme Court's contrary conclusion was unreasonable. See 28 U. S. C. § 2254(d). The District Court therefore granted relief to Pitchford. But the U. S. Court of Appeals for the Fifth Circuit reversed. This Court granted certiorari, 607 U. S. 1094 (2025), and we now reverse the judgment of the U. S. Court of Appeals.

I

A

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The relevant factual background is as follows: In 2004, two black teenagers, Terry Pitchford and Eric Bullins, robbed a grocery store near Grenada, Mississippi—a small town in Grenada County off I–55 in north-central Mississippi. Grenada County was then about 60 percent white and 40 percent black.

At the time of the robbery in 2004, Bullins was 16, and Pitchford was 18. During the robbery, Bullins fired three shots at the store owner, who was a white man, and killed him. *Pitchford* v. *State*, 45 So. 3d 216, 223 (Miss. 2010); 706 F. Supp. 3d 614, 617 (ND Miss. 2023); 126 F. 4th 422, 424 (CA5 2025); Brief for Respondents 5.

Bullins, who fired the fatal shots, reached a plea agreement and received a 20-year sentence for the homicide. 1 App. 294, n. 46. Pitchford also fired a gun, which was loaded with rat shot. It has been disputed whether he shot at the store owner or fired his gun into the store floor. Cf. 706 F. Supp. 3d, at 617. In any event, for Pitchford, the State charged capital murder and sought the death penalty.

During jury selection at Pitchford's trial in Mississippi state court, the prosecutor used peremptory strikes against four of the five black potential jurors. In response, Pitchford's counsel raised a *Batson* objection. 1 App. 167–168. The trial court asked the prosecutor for race-neutral reasons for striking each of the four black potential jurors. According to the prosecutor, one had returned 15 minutes late to court, two others had brothers convicted of violent offenses, and the fourth, like Pitchford, was young, unmarried, and a father. *Id.*, at 169–170. As the prosecutor offered reasons for striking each of the jurors, the trial court declared each to be race neutral. Upon hearing the prosecutor's reason for the last strike, the trial court stated that "[t]he Court finds that to be race neutral as well," and pivoted immediately to the defense's peremptory strikes. *Id.*, at 170. At that time, the trial court did not afford defense counsel an opportunity to rebut as pretextual the prosecutor's race-neutral reasons for striking the four black jurors, nor did the trial court make any findings regarding whether the prosecutor's stated reasons were pretextual. In other words, as the U. S. District Court later explained on habeas review, the trial court "full-stop ended its *Batson* analysis" at step two and never proceeded to step three. 706 F. Supp. 3d, at 623.

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At the close of jury selection, defense counsel sought to raise the *Batson* issue again. But the trial court twice cut off defense counsel and ended the inquiry before counsel could try to rebut as pretextual the race-neutral reasons articulated by the prosecution: "I think you already made those, and they are clear in the record. For the reasons previously stated, first the Court finds there to be no—well, all the reasons were race neutral as to members that were struck by the district attorney's office. And so the, the Court finds there to be no *Batson* violation." 1 App. 175.[1]

[1] During jury selection, Pitchford also separately raised a fair cross-section argument. See, *e. g.*, *Duren* v. *Missouri*, 439 U. S. 357, 363–364 (1979). That claim is not at issue here.

The empaneled jury consisted of 11 white jurors and 1 black juror. The jury convicted Pitchford of capital murder and sentenced him to death.

In the trial court, Pitchford then filed a motion for a new trial that raised numerous issues, including *Batson*. As relevant here, Pitchford advanced the argument that he was prevented from making during jury selection—that the prosecutor's stated reasons for the peremptory challenges were pretextual because the prosecutor "deselected black people from the jury panel who had the same familial, living, social or marital circumstances as whites who were not deselected, which is a clear violation of *Batson* and *Miller-El*." 1 App. 184. The trial court summarily denied Pitchford's motion.

B

For the last 20-plus years while in prison, Pitchford has pursued appellate and collateral challenges to his conviction and death sentence. In his direct appeal to the Mississippi Supreme Court, Pitchford renewed his *Batson* argument—in particular, that the prosecutor's purported race-neutral reasons for striking the four black prospective jurors were pretextual. In a divided opinion, the Mississippi Supreme Court concluded that Pitchford had waived his *Batson* objection by not arguing to the trial court that the prosecutor's proffered explanations were pretextual. See 45 So. 3d, at 227–228. Justice Graves, joined by Justice Kitchens, dissented, reasoning that Pitchford had not waived his *Batson* objection and that the prosecutor's stated reasons for striking the black jurors were pretextual. *Id.*, at 260–268.

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Pitchford later filed a habeas corpus petition in the U. S. District Court for the Northern District of Mississippi. To obtain federal habeas relief under the Antiterrorism and Effective Death Penalty Act of 1996, Pitchford was required to clear a high bar—namely, to establish that the Mississippi Supreme Court's decision "was contrary to, or involved an unreasonable application of, clearly established Federal law,

as determined by the Supreme Court of the United States" or "was based on an unreasonable determination of the facts in light of the evidence presented in the State court proceeding." 28 U. S. C. §§ 2254(d)(1), (2).

Applying that AEDPA standard, the U. S. District Court concluded that the Mississippi Supreme Court had unreasonably applied *Batson* and had unreasonably determined that Pitchford waived his *Batson* objection. The District Court stated: "Simply put, no state court—whether it be the majority in the Mississippi Supreme Court or the trial court—conducted a full three-step *Batson* inquiry on the State's use of its peremptory strikes . . . . The trial court, seemingly eager to proceed to the case itself, quickly deemed the reasons as race-neutral and moved on." 706 F. Supp. 3d, at 626. The District Court further explained that Pitchford had not waived his *Batson* claim. The District Court noted that Pitchford initially raised a *Batson* objection. And after the trial court completed the jury selection process, Pitchford "raised the issue again and confirmed it was on the record." *Id.*, at 624. But the Mississippi trial court "thwarted," although "likely unintentionally," the "attempt by Pitchford's counsel to argue pretext," thus affording Pitchford "no chance to rebut the State's explanations and prove purposeful discrimination." *Ibid.*

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For those reasons, the U. S. District Court ruled that the Mississippi Supreme Court unreasonably applied the clearly established *Batson* precedents and unreasonably determined that Pitchford had waived his opportunity to rebut the prosecutor's proffered race-neutral reasons at *Batson*'s third step. *Id.*, at 627. The U. S. Court of Appeals then reversed the District Court, concluding that the Mississippi Supreme Court's waiver finding was reasonable. See 126 F. 4th, at 431.

II

As this Court has stated, "America's trial judges operate at the front lines of American justice," and "the job of enforc-

ing *Batson* rests first and foremost with trial judges." *Flowers* v. *Mississippi*, 588 U. S. 284, 302 (2019). But here, as the U. S. District Court explained, the Mississippi trial court erroneously omitted *Batson*'s third step: In particular, the trial court did not afford Pitchford's counsel a sufficient opportunity to rebut the prosecutor's proffered race-neutral reasons for striking the four black jurors and never determined whether the prosecutor's stated reasons were pretextual. And as the U. S. District Court further stated, the Mississippi Supreme Court's conclusion that Pitchford waived his opportunity to rebut the prosecutor's proffered race-neutral reasons was unreasonable.

To be clear, in state and federal courts, a party ordinarily must raise an objection in the trial court in order to preserve the issue for appeal. The *Batson* context is no exception to that bedrock principle. See *Ford* v. *Georgia*, 498 U. S. 411, 423 (1991).[2]

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But as the U. S. District Court explained, "Pitchford *did* object to the explanations provided when he raised the issue again and confirmed it was on the record. Perhaps Pitchford's counsel should have been more assertive, but . . . there was no waiver by Pitchford." 706 F. Supp. 3d 614, 624 (ND Miss. 2023).

Notably, moreover, the Mississippi trial court explicitly assured Pitchford's counsel that the *Batson* objection was preserved. When Pitchford's counsel attempted to raise *Batson* again after the prosecutor's race-neutral explanations for the four peremptory strikes of black jurors, the trial court responded: "I think you already made those, and they are clear in the record." 1 App. 175. Especially in light of that specific assurance by the trial court, it was unreasonable for the Mississippi Supreme Court to conclude that Pitchford waived the *Batson* argument.

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[2] In the trial court, a defendant might explicitly waive any *Batson* objection or might forfeit a *Batson* objection by, for example, failing to timely assert it.

To try to overcome those problems with the Mississippi Supreme Court's waiver determination, the State asserts that Pitchford's defense counsel preserved a *Batson* objection but not a *Batson* pretext argument. That slices *Batson* way too thin. At that key point in the jury-selection process—after the prosecutor had asserted facially race-neutral reasons for the peremptory strikes—the *Batson* objection *was* a *Batson* pretext argument. In other words, defense counsel's rebuttal necessarily would include a pretext argument—specifically, that similarly situated white jurors were not challenged by the prosecutor. See *Flowers*, 588 U. S., at 301–302. If allowed to continue, Pitchford therefore could have argued that the prosecutor did not challenge white jurors similarly situated to the challenged black jurors, which is precisely what Pitchford's post-trial motion later did argue. In that post-trial motion, Pitchford contended that "the prosecution's state of mind was clearly racially discriminatory as it deselected black people from the jury panel who had the same familial, living, social or marital circumstances as whites who were not deselected, which is a clear violation of *Batson* and *Miller-El*." 1 App. 184. The bottom line: The State's argument—that Pitchford preserved his *Batson* objection but nonetheless somehow waived his *Batson* pretext argument—does not make much sense and is not a reasonable reading of this record.[3]

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We need not belabor the matter. After a prosecutor asserts race-neutral reasons for a peremptory strike, the de-

[3] For its part, the dissent speculates that Pitchford's counsel, at step three, was seeking to make only a statistical argument, not an argument that similarly situated white jurors were not challenged. *Post*, at 407–408 (opinion of GORSUCH, J.). To begin, that speculation does not reflect how the *Batson* inquiry ordinarily operates. At step three, after the prosecution has offered its facially race-neutral reasons, defense counsel typically tries to show (because it is often the only way of proving a *Batson* violation at step three) that similarly situated white jurors were treated differently and not challenged. In any event, the more fundamental point here is that the Mississippi trial court prevented Pitchford's counsel from pursuing a *Batson* argument at step three.

fense counsel must at least have an opportunity to argue that the asserted race-neutral reasons were not the actual reasons—that is, the reasons were pretextual. Then, the trial court can determine whether those asserted reasons were the actual reasons or instead were pretextual. In this case, whether due to confusion, oversight, an overly hurried jury selection process, or some other cause, things broke down, and the ordinary trial-court procedure for resolving *Batson* claims at step three never occurred—notwithstanding the repeated efforts of Pitchford's counsel to pursue and preserve the *Batson* objection.

To be sure, the AEDPA standard for reviewing claims on federal habeas is deferential to the state court. See *Williams* v. *Taylor*, 529 U. S. 362, 412–413 (2000); *Harrington* v. *Richter*, 562 U. S. 86, 102–103 (2011); *Brown* v. *Davenport*, 596 U. S. 118, 135 (2022); *Klein* v. *Martin*, 607 U. S. 213, 220–221 (2026) (*per curiam*). But deference does not mean abdication, and "deference does not by definition preclude relief." *Miller-El* v. *Dretke*, 545 U. S. 231, 240 (2005) (quotation marks and alteration omitted). In light of the entire record in this case, we agree with the U. S. District Court that the Mississippi Supreme Court unreasonably applied the clearly established *Batson* precedents and unreasonably determined that Pitchford waived his opportunity to rebut the prosecutor's asserted race-neutral reasons for the peremptory strikes of four black prospective jurors. 28 U. S. C. §§2254(d)(1), (2).

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We reverse the judgment of the U. S. Court of Appeals for the Fifth Circuit and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE GORSUCH, with whom JUSTICE THOMAS, JUSTICE ALITO, and JUSTICE BARRETT join, dissenting.

Under the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), federal courts may grant habeas corpus relief to state prisoners only in narrowly defined circum-